

Albertini De Agnoscendis (EN)

De Agnoscendis Assertionibus Catholicis et Haereticis — Quaestiones IV–V et IX (*On Recognizing Catholic and Heretical Assertions*)

Arnaldus Albertinus (Arnaldo Albertini), Bishop of Patti; princeps Palermo 1555 (posthumous); text from the Venice 1571 edition

English translation of Q. IV (what is Catholic truth), Q. V (the grades of Catholic truths, with the eighth grade's reigning-pope example), and Q. IX (the supreme judge of assertions), fols. 10v–15v and 26r–29v, transcribed from the page images of the 1571 edition, with independent adversarial review; translated 1:1.

Source: Arnaldo Albertini (bishop of Patti), *De agnoscendis assertionibus catholicis et haereticis*, Venice 1571. Images a-01...a-24 = selection-PDF pages 1–24 (a-01...a-14 = fols. 10r–16v; a-15...a-24 = fols. 25v–30r). Single column, foliated; running heads: rectos “DE AGNOSC. ASSER[T]. CATH. ET HAER. <fol.>”, versos “ARNAL. ALBER. EPIS. PACT. QVAEST.” Translated 1:1 from the diplomatic transcript (transcript_v1.md), verified against the page images.

Printer's oddities. The printer's anomalies retained [sic] in the transcript (“a, Deo”; “Angustinum”; “conuicere”; “iu cap.”; “vrū verū”; “Ioannesmaria” printed as one word; “In his quæ sunt a Deū”; etc.) are rendered here according to their evident sense, without [sic] flags — except that citation strings are reproduced exactly as printed, including anomalous forms (“c. a, recta” at fol. 26v beside “c. arecta.” at fol. 14v; “Matthæi. vj.” at fol. 12r; “Lucæ xv.” at fol. 27r; “ad Hæbreos 7.” at fol. 28r, rendered as the biblical references printed). “Ioannesmaria de Monte” is kept as printed. The marginal numeral 11 of Q. 9 is not printed (the margins jump 10 → 12), though the summarium has item 11; the translation follows the print.

UNIT 1 — FOURTH QUESTION (what Catholic truth is) + FIFTH QUESTION (the grades of Catholic truths), fols. 10v–15v

SUMMARY.

1 What Catholic truth is. 2 Catholic truth is said explicitly and implicitly.

3 Catholic truth according to Boethius. 4 What a heretical assertion is. 5 Catholic truth exists without the approbation of the Church. 6 Heresies exist without the approbation of the Church. 7 What Catholic truth is according to the theologians.

FOURTH QUESTION.

FOURTHLY. **1.** † I ask: what is Catholic truth? — so that we may know what is contrary to Catholic truth. Catholic truth, then, is that which has been obtained from the supernatural light of divine revelation, immediately or mediately, explicitly in the proper form of words, or implicitly by good and necessary consequence. It is said obtained from the light of divine revelation, in distinction from truths knowable through the inquiry of reason under the natural light, which do not deserve to be called Catholic. And it is said obtained mediately or immediately, since some things God has revealed and reveals to us immediately, through his very self, as the Gospel; whence in John 1 it is said: The only-begotten Son of God, who is in the bosom of the Father, hath declared to us; and in Isaias 52: Behold, I that spoke, am here. But some things God has revealed and reveals to us through others, as through his angels and apostles, or through other holy men. Paul, to the Hebrews 1: God, he says, speaking of old to the fathers in the prophets, last of all hath spoken in the Son. And 2 Peter 1: For prophecy was not brought by human will, but men spoke, the Holy Ghost inspiring them. And therefore not only is that truth to be called Catholic by the faithful which was delivered by God through his very self immediately, but also that which has been obtained through the saints taught and inspired by him; since the Holy Ghost, by whose inspiration the holy men of God have spoken and speak, teaches and inspires nothing but truth: John 16: when he, the Spirit of truth, is come, he will teach you all truth. It is said **2.** † explicitly, in the proper form of words; but implicitly, as deduced by good and necessary consequence. For in these two ways something is said to be contained in sacred Scripture: either in the proper form of words, as this: The Word was made flesh; and this: Christ was a man. Or something implicitly, which follows by good and necessary consequence from the things set forth explicitly in the letter; as from this, Christ was a man, it follows by necessary consequence that

he had a rational soul and all the powers of the soul. It follows also that he had flesh and bones, etc., which pertain to the truth of human nature, as writes the Bishop Vsselen. in the little book which he made against the Count of Mirandola, c. iij. — many of which things he took from the treatise de potestate Papæ published by Car. de Turre Cre., li. 4. c. 8., the author unnamed. But the example set down by him does not seem to me apt, that it should be deduced by necessary consequence that Christ had flesh and bones, since this is explicit, in the proper form of words, in the sacred scripture of the Gospel lesson, Luke 24, when Christ said to his disciples after the resurrection: See my hands and my feet, that it is I myself; handle and see: for a spirit hath not flesh and bones, as you see me to have. Whence it would be a more apt example if we said: Therefore he had sinews and veins; because these things are not contained explicitly in the sacred canon, but it is deduced by necessary consequence, as say Ioan. de Gerso. and the Card. in the said place. Likewise **3.** † it is called Catholic truth, according to Boethius, primo de Trinit., because it is set forth to be observed and believed not by one nation only, but by all; whence, in the last of Matthew, Christ says: Going, teach ye all nations; and Mark 16: Preach the Gospel to every creature. Whence **4.** † that assertion or proposition is heretical which is contrary to Catholic truth according to its grade; because, according to Aristotle, in as many ways as one of two opposites is said, in so many ways is the other also said; therefore it is worth the effort that in the following question we treat thoroughly the grades, or kinds, of Catholic truths, so that, these being known, their opposites may be known, since of contraries the discipline is the same. l. Pomponius. §. Sed & is. ff. de procu. l. j. in prin. ff. de hiis qui sunt sui uel alie. iuris. with the things there handed down. And **5.** † just as Catholic truths (as I touched on above), apart from all approbation of the Church, are by the nature of the thing immutable and immutably true, so are they to be reckoned immutably Catholic. Similarly, **6.** † just as heresies, apart from all reprobation and condemnation, are false, so apart from reprobation are they to be reckoned heresies, as says Gabriel. in 3. sententiarum. di. 25. q. unica. ver. tertio dubitatur. Elsewhere **7.** † the same author also, in 4. dist. xij. q. ij. ar. j., defining Catholic truth, says that Catholic truth is a truth revealed by God, in itself or in its antecedent, pertaining to religion. It is said revealed by God, because a truth acquired by human ingenuity — say, through demonstration or through experience — as such is not called Catholic truth; for every Catholic truth is an article of faith, and faith rests not upon natural evidence but upon divine revelation. It is said in itself, on account of the truths of the sacred canon of the Bible, which have all been revealed to its writers immediately, or according to themselves; for they were the pen of the scribe, that is, of the Holy Ghost writing swiftly, as is written in many

decrees composed by August. 9. dist. It is said or in its antecedent, on account of a truth which from the things contained in the Bible can necessarily be inferred or deduced in consequence; as is this: God is true man, subsisting of a rational soul and flesh — which under this form of words is not found in Scripture, but from it can be deduced in necessary consequence. It is said pertaining to religion, on account of truths not regarding religion or piety, which are not called Catholic truths, although they may have been revealed by God; and there pertains to religion whatever is ordered to piety, that is, the worship of God, or to the end of attaining beatitude. From this it follows that many truths which are not found in canonical Scripture, nor can be deduced in necessary consequence from those alone, are Catholic. First, this is evident of those which have come down to us from the apostles through the revelation of those succeeding them, or through trustworthy writings of the faithful, and yet are not contained in canonical Scripture; that these things were revealed to the Apostles through the Holy Ghost (by whom they were taught all truth) is not doubted. Second, it is evident of those which can be deduced from the foregoing, some necessary, evident, or certain truth being co-assumed. Third, it is evident of those truths which are sufficiently shown to have been revealed by God to other faithful. Fourth, it is evident of those which have been accepted by the universal Church as things to be believed; for it is supposed that she cannot err in the faith: that her faith cannot fail, the prayer of Christ for the faith of Peter makes manifest, Luke 22, and his promised assistance even to the end of the world, Matthew 28, have rendered certain. Fifth and last, it is evident of the truths duly determined by general councils and Roman Pontiffs; for all these things either have been revealed, or have been deduced from revealed things alone, or from revealed things and those truths co-assumed; nor does a Council, or the Roman Pontiff, duly determine anything else, as has just been said. And these five Catholic truths are more fully explicated in the grades or kinds of Catholic truths, which will at once be subjoined for the lucid declaration of the foregoing. From which, by way of resolution, the definition of a Catholic assertion is evident: that is, a Catholic assertion is a truth obtained from the light of divine revelation immediately or mediately, explicitly and in the proper form of words, or implicitly, deduced by good and necessary consequence — declaring the individual words as I have said. Or otherwise it can be said, according to some: a Catholic assertion is that to which every adult is bound explicitly or implicitly firmly to adhere by faith alone, and not by experience or demonstrative reason, although in fact he may have certain motives. And therefore it is called Catholic, that is, universal, as say the gl. in rub. C. de Sum. Tri. and the Arch. in c. fundamenta. in prin. de elect. li. 6., because it is to be preached everywhere, and is set forth to be believed by all

nations; whence Christ, Marci. ult.: Going, teach ye all nations. And because in it nothing false has ever lain beneath, lies beneath, or will lie beneath, as writes Boeti. at the beginning of the book de Trinitate.

SUMMARY.

1 How many grades of Catholic truths there are. 2 He who conceals another's praise is equal to a thief. 3 Sacred Scripture admits no doubt of its truth. 4 A heretical assertion is that which contradicts Catholic truth in the proper form of words.

5 A heretical assertion is that which contradicts sacred Scripture in the things deduced into necessary consequence. 6 A heretical assertion is that which contradicts the things which are handed down to us by the Apostles. 7 A general council cannot err in the things which are of the faith. 8 Many things are read in the churches which it is not of the necessity of salvation to believe. 9 It is a heretical assertion not to believe the things determined by the Church in matters which are of the faith. 10 A council can err in things which are not of the faith. 11 One doctor can overcome the common opinion. 12 It is Catholic truth to believe the things determined by the Apostolic See in matters which are of the faith. 13 It is Catholic truth to believe the things which the holy doctors have written against heretics. 14 Who the doctors approved by the Church are. 15 What the probable is. 16 What an assertion savoring of Catholic truth is. 17 What an assertion savoring of heresy is. 18 How many are the grades or kinds of Catholic truths.

FIFTH QUESTION.

FIFTHLY 1. † I ask: how many are the grades or kinds or ways of knowing Catholic truths — and consequently the heresies opposed to them? I answer that there are several, in the unfolding of which I shall follow the footsteps of the venerable inceptor Occham, of Io. de Ger., Chancellor of Paris, and of the Cardinal of Saint Sixtus, and of certain others; nor shall I blush to name the authors from whom I have learned and shall learn, since 2. † he who conceals another's praise is equal to a thief, as is argued in l. hæreditatum. §. fi. ff. ad legem falci., which Bal. alleges to this purpose in præludiis feudo. col. fi.; the same Bal. in rub. de eo qui est in posse. cau. rei serua.; whom I heard alleged viva voce by do. Iasso. Maino. in the academy of Ticinum, while he was lecturing on l. 3. §. si rē. ff. de acq. pos.

THE FIRST grade, then, or kind of Catholic truths is of those which are contained in the canon of sacred Scripture, of the Old or New Testament, in the proper form of words; as is this: In the beginning God created heaven and earth. Likewise: The Word was made flesh. But 3. † that truths of this kind, contained in sacred Scripture, are Catholic is manifest, since the truth of sacred Scripture is in no way to be doubted. Whence Augustine says, and it is written in c. quis nesciat. 9. dist.: Who does not know that the canonical sacred Scripture, of the Old as well as of the New Testament, is contained within its own fixed limits, and that it is so set before all later letters of bishops, that concerning it there can be no doubting or disputing at all whether whatever is written in it, or is established to be there, is true or is right. And elsewhere Augustine, in c. ego solis. eadē. disti., says: I have learned to pay this fear and honor to the books of the Scriptures alone (which are called canonical), that I most firmly believe that none of their authors erred in writing. And if other proof is sought, Matthew 5 suffices: For amen I say to you, till heaven and earth pass, one jot or one tittle shall not pass of the law, till all be fulfilled. And there follows: Amen I say to you, heaven and earth shall pass away. Now it is established that the canon of the Bible is the law of God obtained through revelation, whose literal assertions rest upon a single literal principle: everything revealed by God is true, as says Aug. in d. c. ego solis. Whence 4. † an assertion which should go against this first Catholic truth would be heretical, because it would contradict this first truth of the first grade in its proper terms — namely, the truths contained under the proper form of words in sacred Scripture — as would be this: that in the beginning God did not create heaven and earth; or that the Word was not made flesh; both of which assertions contradict in their proper terms the Scripture of the Old and New Testament, as Gene. j. and Io. j.; and thus it would be the first species of heresies.

THE SECOND grade of Catholic truths is of those which are inferred by good and necessary consequence from the things contained in the sacred canon alone; hence, since such truths have the same firmness of truth and necessity of belief as have the truths from which they are inferred by necessary and formal consequence, they are reasonably numbered among Catholic truths. Such a truth is this: Christ is true God and true man; which, although such things are not found thus formally in the course of sacred Scripture, as say Occham and Card. de Turre Crema., yet, because they are concluded by necessary consequence from the things contained in sacred Scripture, it is to be judged Catholic, and to believe it is necessary to salvation. Whence 5. † the assertion contrary to this Catholic truth is the second species of heresies, which is repugnant to the Catholic truth of the second grade — namely, to

those truths which are inferred by necessary and formal consequence from the things contained in sacred Scripture alone. Such is: Christ did not have a passible or an agent intellect; the opposite of which is manifestly inferred by necessary consequence from the things contained in sacred Scripture.

THE THIRD grade of Catholic truths is of those which are contained outside the canon of sacred Scripture, but which have come down to the faithful through revelation and approbation only, by the mediation of the apostles. Indeed, while Christ lived in mortal flesh, he both taught the Apostles many things and did many things which are not found in the sacred canon, according to that saying of the last chapter of John: Many other things Jesus did, which are not written in this book; and Christ commanded many other Catholic virtues to be taught by the Apostles, which are not found in the canon. Hence Augustine, in the third book *de paruulorum baptismo*, says: those things which, though not written, the universal Church observes, she received from the Apostles, Christ teaching. The same Augustine in *c. Ecclesiasticarū. xj. dist.*; and so says the text in *c. cū Marthæ. de celeb. missa.*, on the form of the consecration of the Eucharist. Indeed, many things, as much of the Lord's words as of his deeds, are found to have been omitted by the Evangelists, which the Apostles also are read either to have supplied by word or to have set forth by deed. Such is: that the use of the sign of the cross should be in the Church, and that the faithful ought to be marked with such a sign. For so great is the authority of the Church that Augustine said, in the *Epistola fundamenti*: I would not believe the Gospel, did not the authority of the Church compel me. Although in turn it could be said: I would not believe the Church, did not the authority of sacred Scripture impel me. And thus, in different respects, each mutually confirms the other, as says Gerson. Whence **6.** † the third species of heresies would be those which should go against the Catholic truths of this third grade of Catholic truths — namely, those which by the tradition or revelation of the Apostles the universal Church believes and observes. And in this kind, that assertion would be heretical which says that the use of the sign of the cross ought not to be in the Church; whence such truths, and those which can be unchangeably inferred from them by necessary consequence, come to be computed among Catholic truths, and the assertions contrary to them are to be judged heretical.

THE FOURTH grade of Catholic truths is of those which have been defined by the universal Church in plenary councils as pertaining to the faith of the Christian religion, although they are not expressly found in the canon of sacred Scripture. And **7.** † the reason for this is manifest, because the plenary councils of the

universal Church cannot err in the things which are of the faith, as the said Card. well writes, *de potestate Ecclesiæ lib. iij. capitulo. lvij.*; it is handed down in *c. significasti, de electio.*, because what is done by a council is seen to be done by divine revelation, *c. frustra. viij. disti.*; and there is an excellent text in *c. si ille. l. disti.*, there: whatever shall have been said against the definition of those councils (in which we believe the Holy Ghost to have spoken), it is not doubted that to receive it is not only rash but even dangerous. Hence blessed Gregory, in *c. sicut. disti. xv.*, says: as the four books of the holy Gospel, so do I confess that I receive and venerate the four councils. And in the book *de catho. ueri.* he says: as God is true, so the things which the apostolic Church has taught concerning God are true. Whence it is deservedly said in the first chapter of Proverbs: forsake not the law of thy mother — that is, of the Church. Of this sort is this truth: that the Holy Ghost proceeds eternally from the Father and the Son, as was decided in the Council of Lyons, and is found in *c. j. de summa Trini. lib. vj.* And so of others. And **8.** † it was said advisedly, have been defined as pertaining to the faith of the Christian religion, because, as say Ioannes de Gerso. and the said Cardi., many things are handed down in the Church which the Church tolerates to be publicly read, which are not to be believed of the necessity of salvation — but only those which she hands down under judicial definition as things to be believed, or by reprobating their opposites, with the universal consent of the whole Church concurring implicitly or explicitly. And the foregoing things are said on account of the many things which are permitted to be read in the Church and are tolerated, all of which it is not of the necessity of salvation to believe, nor are they to be reckoned among Catholic truths, although many of them are piously believed by the faithful. Such are the many things contained in the legends or histories of the saints, and in the Lives of the Fathers, which, since they are not manifestly known to be false, but rather to have some appearance of probability, can be believed; inasmuch as they profit for stirring the pious acts of the faithful unto devotion, they are safely read and piously believed — provided, however, that the mind does not adhere to them with pertinacious assertion.

¶ Whence **9.** † the fourth species of heresy is that which should contradict the truths of this fourth grade of Catholic truths — namely, the things defined and determined by the judgment of the universal Church in universal councils; as if it were said that the Holy Ghost does not proceed from the Father and the Son, as was decided, as I have said, and is found in *c. de Spiritu Sancto. de consecra. disti. ultima.* And advisedly I speak, in this grade, of things defined by a general council concerning those matters which are of the faith, because in these (as I have said)

the universal Church, or a general council, cannot err — nor indeed in morals, as at length by Petrus exime. in tracta. de clauibus Ecclesiæ capi. cxli. But **10.** † in other things, which do not concern the faith, a general council perhaps can err, as it is said to have erred concerning the contracting of marriage between the ravisher and the ravished woman; and the saying of Jerome, who judged better, was afterwards preferred to the conciliar statute, as is proved in c. tria. iuncto. c. placuit. xxxvj. q. ij. and in c. de libellis. in glo. illorum. xx. disti.; the Abbas in c. significasti. de electio. colu. ij.; the glo. in c. j. de reliquijs & uene. Sancto. lib. vj. makes for this; so writes Car. Alex. in c. Anastasius. in fi. xix. distin.; Car. de Turre crema. in c. secundum Ecclesiæ. eadem disti. And **11.** † for this makes the text in l. j. §. sed neque. C. de uet. iure. enu., that oftentimes God opens the understanding to someone in some matter, in such wise as he has not opened it to many other and graver doctors. By which text those writing on c. capellanus. de ferijs. say that one doctor could overcome the common opinion by better reasons and subtler motives; and therefore Ioan. Andre. said, in c. j. de consti., that the common opinion can be erroneous, as the more modern writers there hand down at length. Wherefore the text says, in d. §. sed neq;.: but neither from the multitude of authors judge ye what is better and more equitable, since the opinion of one, and perhaps of a lesser man, can in some point surpass many and greater men.

THE FIFTH **12.** † grade of Catholic truths is of those which in matter of faith have been defined by the judgment of the Apostolic See; which, although they are not found in the canon of sacred Scripture, are nevertheless computed among Catholic truths. The reason whereof is that the judgment of the Apostolic See cannot err in the things which are of the faith; for which makes Luke 22: I have prayed for thee, Peter, that thy faith fail not; and do thou at some time confirm thy brethren — as writes the Card. in d. tract. lib. ij. cap. cix. Which is openly confirmed by the saying of Augustine in c. in canonicis. xix. dist., where among the canonical scriptures to be computed he places the Epistles which it has merited to have from the Apostolic See, and others have merited to receive. And it is found in c. omnes. eadem. disti., where it is thus said: all the sanctions of the Apostolic See are so to be received as though confirmed by his own divine voice. And better in d. c. frustra. and d. c. Ille. And the divine Jerome confirms this in cap. hæc est fides. xxiiij. q. j., saying: If this our confession be approved by the judgment of thy Apostolate, whoever shall wish to calumniate me will prove himself unskilled and malevolent, or not to be Catholic, but a heretic; where the Card. concludes that in those things which have been defined by the supreme Pontiff with the Cardinals concerning the faith, error cannot lie beneath. For this make c. arecta. cum sequēti.

and d. c. hæc est fides. ea cau. & q. Hence there is the fifth species of heresies: those false assertions which are contrary to the truths of this fifth grade of Catholic truths — that is, to the things determined and defined by the judgment of the Apostolic See.

THE SIXTH **13.** † grade of Catholic truths seems, according to the said Cardi., to be of those which, concerning the faith to be held and the confutation of heretics, have been assertively handed down by doctors approved by the universal Church, although they are not expressly contained in the canon of sacred Scripture. Which is evident, since, when the universal Church, which is ruled by the Holy Ghost, has approved certain doctors, receiving their doctrine, it is necessary that the doctrine of such men, assertively set down and never elsewhere retracted, be true, and be held by all the faithful with firm belief in that part in which it has been received by the universal Church; otherwise the universal Church would seem to have erred in approving and accepting as true their doctrine which nevertheless was not true. But **14.** † who these doctors are whose doctrine has been approved is gathered from the text in c. gloriosus Deus. de reliquijs & Vene. Sanctorum. libr. vj., where are mentioned Gregory, Augustine, Ambrose, and Jerome; the most lucid and salutary teachings of which doctors (as is there said) have illumined the Church. The same is found in c. Sancta Romana Ecclesia. xv. disti.; and S. Tho. said, contra gentiles. lib. iiij. c. xxiiij., that in the determination of the fifth council it is found: we follow in all things the holy fathers and doctors of the Church — Athanasius, Gregory the Theologian, Gregory of Nyssa, Ambrose, Augustine, Theophilus, John of Constantinople, Cyril, Leo the First — and we receive all the things which they expounded concerning the right faith and the condemnation of heretics; as there by him.

THE SEVENTH grade of Catholic truths is of those which can be inferred by necessary and formal consequence from the fourth, fifth, and sixth grade of Catholic truths. I say by necessary and formal consequence, because if something were inferred only by probable consequence, it would not properly be called a Catholic truth, but a probable one. Now **15.** † Aristotle said: that is probable which appears true to all, and especially to the wise — not, however, that which seems true to the unlearned. He said probable, since the number of fools is infinite, Ecclesiastes 1. Whence that assertion would be heretical which contradicts the Catholic truths of the seventh grade of Catholic truths, which are inferred by necessary and formal consequence from the fourth, fifth, and sixth grade of Catholic truths; and of these you have examples above in the fourth question.

¶ THE EIGHTH **16.** † and last grade of truths is that which, although it is not, properly speaking, Catholic truth, is nonetheless savoring of Catholic truth, inasmuch as it is near to Catholic truths. Whence a truth savoring of Catholic truth is that from which — some truth being joined to it not pertaining to the faith, which nevertheless cannot reasonably be denied — a Catholic truth follows. For example: since now in the Apostolic See sits Ioannesmaria de Monte, of a generous and most noble family, this proposition, Ioannesmaria de Monte is Pope, is a proposition savoring of Catholic truth. This is evident, since, joined with that truth which cannot be denied — that he was duly and canonically elected, as for instance by the whole college of the lord Cardinals, or by two parts thereof — it becomes a Catholic truth, by saying: The lord Ioannesmaria de Monte, duly and canonically elected, and received as Pope by the universal Church, is true Pope by determination of the universal Church. *ca. in nomine domini. xxiiij. distin. c. de euitanda. de electio. c. vbi periculum, eod. titu. lib. vj.* And in the Council of Constance it was provided that the canonically elected Pope for the time being, his proper name being expressed, is the successor of blessed Peter, having supreme authority in the Church of God. And **17.** † the said assertion conceived negatively — that he is not true Pope — is an assertion savoring of heresy, as said Ioan. de Gerso. in the said tract, in the first part; whence certain species of false assertion, or assertions, are distinguished which, if they are not absolutely heretical, are nevertheless near to heresy — such as that which asserts a perverse dogma from which, with a notorious truth which cannot be denied, there follows heresy properly so called, as I shall say below, where I shall treat the species of false and damnable assertions. And **18.** † thus from the foregoing it will be easy to know that all truths have their grades, and are not of the same nature, but of diverse kinds and grades; for some are Catholic, some savoring of Catholic truth, some only probable, some piously credible, and some impertinent, as I shall say below. And contrariwise the species of heresies will be known — in what grade they are to be placed — by referring each to its contraries. From which it is evident that every error which openly contradicts the aforesaid Catholic truths, or any one of them, directly or in good and necessary consequence, is a heresy condemned explicitly; and as soon as it should be established that someone pertinaciously adheres to such an error, he would be to be reckoned a heretic; and against such a one, as against a heretic, the Bishop or the inquisitor could proceed, according to *c. ad abolendam. in princip. de hære.*

{Here ends Q. 5. On the same page (fol. 15v) follows the *SUMMARY* of the next quaestio (its item 1: *What a heretical assertion is.*) and the heading *SIXTH QUESTION*, opening: “*SIXTHLY. † I ask how many are the species of false or damnable assertions. I answer: several, as will appear from what is straightway to be said.*” — not transcribed.}

UNIT 2 — NINTH QUESTION (to whom it belongs, by judicial and supreme authority, to define an assertion to be Catholic or heretical), fols. 26r–29v

SUMMARY.

1 Who can determine doubts of the faith. 2 The apostolic Church has never fallen into heresy. 3 The Pope determines the things which pertain to the faith. 4 The Pope puts forth the creed, and convokes a general synod. 5 The authority of the holy doctors prevails over the authority of the church. 6 Peter defines the question concerning the non-observance of the ceremonies of the law. 7 Peter is compared to Moses in the determining of causes. 8 Peter held the primacy of the church in the faith, and today the Pope. 9 He who holds a heresy condemned by a particular church is not excommunicated, nor a heretic. 10 The Pope does not make Catholic truth, nor heresy, but declares it. 11 That the Pope can err in the things which are of the faith, according to Abba. and Ocham. 12 The Pope as a singular person can err against the faith. 13 The Pope as Pope, in judicial definition, cannot err against the faith.

14 A general council cannot err in the faith. 15 The consilium of the author published in the cause of the Queen of England. 16 Why a general council is convoked for the determination of causes of the faith, if the Pope could do this alone. 17 That general councils be gathered for causes of the faith is most useful, but not necessary. 18 The understanding of the glo. in c. Anastasius. xix dist. 19 The opinion of the greater number has the greatest authority and presumption. 20 The convocation of a general council regularly belongs to the Pope. 21 The Pope and the emperor ought always to have in their counsel learned and wise men.

NINTH QUESTION.

NINTHLY 1. † I ask: to whom does it belong, by judicial and supreme authority, to define that some assertion is Catholic or heretical, and thus to terminate doubts of the faith? I answer that this determination and definition belongs to the supreme pontiff and to his holy Apostolic See, whose faith can never fail, because to Peter

the Apostle, presiding in it, it was said: I have prayed for thee, Peter, that thy faith fail not. Luke 22, and in c. maiores, in prin. de baptismo. For **2.** † this holy and apostolic church, mother of all the churches of Christ, is proved, through the grace of almighty God, never to have strayed from the path of Apostolic tradition, nor has she succumbed, to be depraved by heretical pravities. c. a, recta 24. q. j. In those things, therefore, which are of the faith she cannot err. And the Abbas alleges that text to this purpose in c. a nobis. 2. col. j. de sen. excommu.; c. pudenda. 24. q. 1. makes for this; the glo. in c. j. de translatio. Episc. and in c. j. de reliquijs & uene. sanctorum.; Decius in c. significasti. de electio. Hence Cyprian says: he who deserts the chair of Peter, upon which the church is founded, let him not trust that he is in the church. c. qui cathedram. xcij. di. And **3.** † S. Tho. says, in 2. 2. q. xj. arti. ij. ad iij., that this authority of determining the things which are of the faith resides principally in the supreme pontiff; and for this he alleges d. c. quotiens. xxiiij. q. j., where it is said: as often as a matter of the faith is ventilated, recourse must be had to none but Peter — that is, to him who has the honor and authority of his name. And the same S. Thom. says, in the opusculum contra Græcos, capitulo lxvij., that it pertains to the Pope to determine the things which are of the faith; for which he alleges Cyril, patriarch of Jerusalem, in libro thesaurorum, saying: that we may remain as members in our head, the apostolic throne of the Roman pontiffs, from whom it is ours to ask what we ought to believe and what to hold. And Maximus also said, in the epistle directed to the Orientals: we say that the universal church is united and founded upon the rock of Peter's confession, according to the definition of the Saviour; in which it is necessary for the salvation of our souls to remain, and also to obey her, keeping her faith and confession. And **4.** † S. Thom. says, in 2. 2. q. 1. arti. ultimo, in the body of the question, that to the sole authority of the supreme pontiff pertains a new edition of the creed, as also all other things which pertain to the whole church, such as to gather a general synod, and other things of this kind; for the Pope in these things is most right, on account of the assistance of the Holy Ghost in the judgment of faith, on account of the universal good of the faith, as he promised, John 14: the Holy Ghost will teach you all truth; and to Peter he said: I have prayed for thee, etc. And **5.** † so concludes the said Card. de uio, in tracta. de autho. Papæ & conciliorum. c. ix.: against the authority of which supreme Pontiff neither Jerome, nor Augustine, nor any of the saints defended his own opinion. Whence Jerome, to Pope Damasus, confirming this conclusion, says: This is the faith, most blessed father, which we have learned in the Catholic Church; in which if perhaps something has been set down less skillfully or with too little caution, I desire it to be amended by thee, who holdest the faith and the see of Peter; but if this our confession be approved by the

judgment of thy apostolate, whoever shall wish to blame me will prove himself unskilled, or malevolent, or even not Catholic — not me a heretic; as it is set down in c. *Hæc est fides*. 24. q. j., where the Card. concludes that the Pope, who is the head of the church, the master and leader of the Christian people, cannot err in those things which, concerning the faith to be held and believed, he should by the office of his Apostolate publicly decree to the Christian people, or should define to be believed and held. Which 6. † is also proved, because the question concerning the non-observance of the legal ceremonies Peter defined, and James promulgated that definition; in the fifteenth of Acts, there: And when there had been much disputing, Peter, rising up, said. Where the interlinear gloss says: before all, he speaks as Prince; so that, as Jerome says, Peter had been the prince of that decree, that the law after the Gospel is not to be observed; thence followed the constitution of the Church in which is condemned the heresy which wrongly affirmed that the law was to be observed together with the Gospel, circumcision with Baptism. capitul. maiores. de baptismo. Because, according to the Apostle, Galatians 5: If you be circumcised, Christ shall profit you nothing. And 7. † of the Roman Church herself we say that she is the mother of the faith. capitulo omnes. xxij. distinctio. By whose determination one must stand. capitulo enim uero. xix. distinct. And as Moses was the Leader and Ruler of the Jews, so is the Pope of the Christians, as says saint Bernard, ad Euge. libro 2. capitulo vij. For so it is read in the eighteenth of Exodus: be thou to the people in those things which pertain to God, that thou mayest show the ceremonies and the rite of worshipping God. And there follows: but whatsoever is greater let them refer to thee, that they themselves may judge only the lesser matters. As therefore all questions emerging from the law and the worship of God were reserved to Moses to be determined, so all things which are of the Christian faith are reserved to the Roman pontiff to be defined, and to be commanded to be held and observed, as is proved in d. c. maiores. So writes Cardi. de Turre Crema. in d. tracta. de potestate Papæ. li. 2. capitulo 107. And 8. † for this there is the fact that, when Christ had commanded the other disciples to let down their nets into the sea, to Peter alone he said: launch out into the deep. Luke 15. That is, into the depth of disputations, as Ambrose glossed in c. non turbatur. 24. q. 1. For to the pontiff himself, as holding the primacy of the Church, it pertains to terminate causes of the faith by a lucid sentence, as in d. c. *hæc est fides*; and more on these matters is handed down by Andre. Siculus in consi. 1. incipien. ex sacris excellentiæ. colum. 12. lib. pri., and by Augustinus de Ancho. in tracta. de potestate Papæ q. x. articu. ij. And Petrus de Palude says, in iiij. q. iiij., that to the Pope alone it pertains to determine generally what is heretical and what Catholic. Nor is he 9. † excommunicated by the law who holds that which one particular

Church judges heretical, but he who firmly adheres to that which the universal Church, or the Roman, has defined to be heretical — to which this pertains; because so long as a man adheres to the faith of the Roman Church, although any other Church whatsoever holds the opposite, he is never a heretic. c. *damnamus in fide. de summa Trinita*. Because she cannot err in the things which pertain to the faith — otherwise in other things — as writes S. Tho. in *quoli. 8. q. 16*. But every other Church can err, as the whole Church of the Greeks; whence he who determines against such articles of some particular Church does not incur the sentence of the law. And the same is to be said of the articles condemned at Paris: that he who holds against them does not incur the excommunication of the law, as do all heretics condemned by the Roman Church, as in d. c. *ad abolendam*. Which does not stand in the way, in that it calls those men heretics whom the Bishops shall have judged such, because it is understood of heretics holding heresies condemned by the Roman Church, as I said above, according as the gl. understands in d. c. *quotiens*; and of these things August. de Ancho. says more in d. q. x.; the same is concluded by Bonifacius de uitallinis in cle. *ad nostrum. col. pe. de hæreticis*. And it is one thing to condemn one who errs concerning the articles of the faith — which a Bishop can do, as in d. c. *ad abolendam*.; it is another to determine what the law is when there is doubt concerning the articles of the faith — as in d. c. *maiores. per Collecta*. And **10.** † the Pope, by declaring or approving some Catholic truth, does not make it Catholic anew, nor by condemning an error does he make a heresy anew; but he determines anew that that truth was Catholic long before, and that that error was heresy long before; according as I said more at length above in the first question, at the end, in rubr. *de hæret. lib. 6. quæst. j.* Nor does that please me which Occham says in his dialogue, parte j. li ij. c. xiiij., when he holds that the supreme Pontiff can err in the definition of the things which are of the faith; and with him the Abbas seems to agree in cap. *significasti. de electio.*, where he holds not only that the Pope can err in the definition of such things, but even a general council — but that the universal Church, which is the collection of all the faithful, could not err — as there by him, and in the disputation beginning *Episcopus & rector. nu. 21*. But just as the theory of the said Abbas on this point is greatly to be guarded against, as says D. Thom. de uio car. in the Apostils on S. Thom., in ij. ij. quæst. xj. articu. 2., so also from those things which Occham says; for he savored ill concerning the power of the supreme Pontiff, as says Archidia. Flo. in the third part of his chronicle, titu. xxiiij. capitulo 8. §. 2. Because **12.** † as to the person of the Pope it is to be noted that, although he, insofar as he is a singular person, can err, and thus be a heretic, as in c. *si Papa. xl. distinct.* — as Pope Anastasius, as in c. *Anastasius. xix. distinct.*; and Symmachus,

c. incompetenter. §. cum Balaam. 2. q. 7.; so Marcellinus, who adored idols, as in ca. nunc autem. xxj. di.; and it is read in the Chronicles of Pope Sylvester the Second, who had done homage to the devil, whom, while Pope, he consulted, as writes Anto. in the second part of his Chronicle, Titulo xvj. §. xvij.; and so of others who were polluted with this stain, because they are men, and lie subject to infirmities, as do others, as Paul testifies, Hebrews 7, saying: every Pontiff taken from among men is appointed for men in the things that pertain to God, that he may offer to God sacrifices for sins, and that he may be able to have compassion on them that are ignorant and that err, because he himself also is compassed with infirmity. Nevertheless, **13.** † in that definition which he makes of the things which are of the faith, he is so governed by God that he cannot judicially err, as the Card. writes at length in d. c. hæc est fides. And in this sentence rests the aforesaid D. Cardi. de vio, in his treatise de authori. Papæ & conciliorum. capitulo 8., when he says that it is certain that the Pope, because he is one singular person, can err in the faith by personal error more than all the rest of the Church — which is not our subject, because our question is not about such error; but as to judicial error, in decreeing and determining the things which are of the faith, it is the converse: that he cannot err, because the community of the Church without the authority of the Pope can err more than the Pope. And although some have striven to impugn this, he himself defends it efficaciously in his apology, in ij. parte ca. xiiij. But **14.** † that a perfect general council cannot err in the things which are of the faith, Card. de Turre. Crema. writes in his tracta. de potestate Ecclesi. lib. 3. cap. 58. and in ca. cum secundum. xix. distinct.; and Iacobus Almein. in lib. de suprema potestate. capitulo. xvij., where with efficacious reasons he confutes the things which Abbas Pano. writes in d. c. significasti. de electio., in iij. sententiarum. distin. xxiiij. q. j., near the end. Concerning **15.** † the supreme power of which supreme Pontiff I wrote some things in the consilium which I lately published upon several doubts, and notably upon that one which with others is ventilated at Rome before the supreme Pontiff Clement the Seventh, between the most Illustrious Henry the Eighth, King of England, and the most Serene Lady Catherine, his most honorable consort, adorned with most illustrious virtues — namely, whether the first grade of affinity contracted between the same spouses, on account of the Marriage formerly entered by the same lady with Arthur, brother of the said Henry, who died without children, is prohibited by divine law; where with very many foundations I confirmed the negative side, which I proved by every law; and, granted that some should wish to cavil at it, or at least to reckon it ambiguous, it was shown by the clearest reasons and laws that, from a canonical cause of fact which was then present, Pope Julius the Second could dispense concerning the obstacle of the said

affinity. Which doubts, at the bidding of our Caesar, ever Augustus, were transmitted to me, that I might respond concerning the truth; which begins: This cause is of the greatest weight, concerning which I judge that the more excellent doctors of the whole world are to be consulted; therefore among their consilia this one of mine will be as an ant before an elephant. Which cause being happily decided, it came forth into the light with others of mine, after it is established that it was accepted and approved by the same Caesar, by his sacred letters given to me at Mandril. But **16.** † against the foregoing there seems to make a notable and perhaps singular glo. in c. Anastasius xix. di., saying that where the faith is at issue the Pope ought to require the counsel of the Bishops; which is most strongly urged, because, if the Pope alone could determine the things which are of the faith, and his sentence were stood by, to what purpose were those four solemn councils gathered — namely, the Nicene, the Constantinopolitan, the Ephesine, and the Chalcedonian — which Gregory says that he venerates as the four books of the Gospel; and they were gathered for the determination of things which were of the Catholic faith; concerning which in c. sicut. xv. di. For in vain is that done by more which can be done by fewer; and business is dispatched with more difficulty by more than by fewer — whence the verse: More men dispatch entrusted business more sluggishly — as is the text, together with the gl., in l. decreto. §. fi. e. ti. And Bal. says, in l. cuius. ff. de curatore furiosi., by that text, that jurisdiction ought to be exercised by the firstborn, and thus by one, because plurality brings in difficulty, as in l. ij. §. nouissime. ff. de origine iuris.; and there is an excellent argument in c. j. de hære. li. 6. To **17.** † these things I say that the gathering of general councils brought great utility in the primitive Church, in that these councils extirpated many heresies, as in c. canones. xv. di.; which is evident also in that council of the Apostles held in Acts 15; because the things which are done in such councils are transacted with great maturity. c. quibus. xx. di. c. extra conscientiam. 64. di. And therefore they are called most salutary in the Church. ca. illa. xij. dist. And this is what is written, Zacharias 8: I will encompass my house — that is, the Church — and with these that war for me — with the prelates and princes, who, called by the Pope to a council, truly encompass his house, that is, the Church, with their soldiers. Whence, even if they are useful, they nevertheless do not seem necessary; because, as says S. Thom., it is not necessary, though it be useful, to convoke a council even for the declaration of the faith, as says Card. Alexan. in c. Anastasius. 19. distin. Whence **18.** † what the glo. there says is understood of the case when the doubt concerning the faith should be greatest, so that even the Pope with the Cardinals should be in doubt; for then a universal council of Bishops ought deservedly to be convoked, as says Card. de Turre Crema. in capitulo secundum

Ecclesiæ. 19. dist.; for otherwise the said glo. would contradict capitulo Maiores. de baptismo., where it is evident that greater questions, above all those of the faith, ought to be referred to the see of Peter, and thus to the Pope; and the same in the said capitulo quotiens. Whence in capitulo omnes 22. distint. the Roman Church is called the Mistress of the faith, and to her Jerome has recourse, as in d. cap. hæc est fides; and so concludes Abbas Panor. in his disputation beginning Episcopus & quidam rector. colu. 7. uersi. pro ea enim in persona Petri. Moreover, the said glo. can be understood of the case when the Pope should wish to establish something against the things which were established by a council — that then he ought to convoke a council, as says the Card. in d. c. Anastasius; and in c. sicut. xv. dist. Panor. confirms it, in d. c. maiores. colu. j. Furthermore, general councils were gathered, or it is fitting that they be gathered, in causes of the faith for this reason: because of the discussion and comparison with the universal multitude of those wise in the faith, and because of the undoubted judges, accepted by all, greater than every exception — not because of the power, since it is the Pope's own; and because that will be more acceptable to all which shall have been decided by so many and so great wise men, as says the said Card. de Vio. in the said Apology, ij. parte capitulo 13. And he says, in the alleged treatise, capitulo 9., that when it is said of judicial error that the universal Church alone cannot err in the faith, the supreme Pontiff is not excluded but included, because the authority of determining concerning the faith which belongs to the universal Church resides principally in the Roman Pontiff, as says S. Tho. in d. 2. 2. q. xj. art. 3. ad 3. And therefore in the alleged quodlibet S. Tho. uses the judgment of the Church and of the Pope as synonyms, showing expressly that one must stand by the sentence of the Pope, through the assistance of Divine providence; for we are certain that neither the Pope, nor the Church, nor an entire universal synod can err in the faith when judging authoritatively concerning the faith. But of a headless Church or synod nothing is found, because no authority is found in her without a head, although there can be many merits, learning, and wisdom; because the presumption is to be made in favor of the sentence of the greater number of doctors. c. prudentiam. in prin. de offi. dele. And **19.** † that sentence or opinion seems to be truer which is strengthened by the judgment of the greater number. ut. l. j. uersi. crebrior apud ueteres. ff. de offi. q̄storis. & l. j. ff. de senatoribus. l. athletæ. ff. de infami., according as the moderns write more fully in c. ne innitaris. de cōsti. And it is said, Proverbs 15: Designs are brought to nothing where there is no counsel; and the same in ch. 24, there: safety where there are many counsels. And in councils of this kind, as upon a squared stone, the structure of the holy faith rises up, and the norm of every life and of common action stands, as says the text in c. sicut sancti. xv.

dist. And in general councils the matter is accomplished with greater maturity, because there very many are convoked, that all may come together into one. c. canones. §. concilij. xv. dist. And that judgment is more entire which is confirmed by the sentences of the greater number. c. extra conscientiā. lxiiij. dist. Domi. in c. per hoc. §. uerum. de hære. lib. vj. And **20.** † the convocation of these general councils regularly belongs to the supreme Pontiff. c. j. in fi. & c. ij. xvij. dist. And that which shall not have been gathered by the authority of the supreme pontiff is not to be called a council, but is to be named a conventicle or a conciliabulum, and therefore is to be quashed; and whatever shall have been done in it is held invalid and void, as in c. multis. xvij. dist. And this is the regular rule, which fails in certain cases, in which the convocation does not belong to the supreme pontiff — for instance, when he himself should be accused of heresy — and in others, as writes Car. de Turre Crema. in his tracta. de potestate ecclesi. li. iij. c. 8., and Decius in consi. clj. Antequàm perscruteris. col. j. & ij., Car. Alex. in c. Sinodum. 17. dist. and in c. si Papa. xl. dist.; and because it is not a matter of the present speculation, I remit myself to the things written by them, and to those which Anto. de Rosellis writes in his tracta. de concilijs. q. 4. To **21.** † the other contrary arguments the solution is evident: because, although business is dispatched more sluggishly and with more difficulty by many, yet it is transacted more prudently, on account of the assistance of wise men, who have to take part in these councils; and therefore the Pope is said to have all laws in the shrine of his breast, as in c. j. de consti. lib. vj.; so writes Maria. Socy. in tracta. de uisita. colu. iij. From which it is shown that the Pope and the Emperor ought always to have with them men of eminent knowledge, who may attend to the decision of such causes, as says Car. Alex. in d. c. multis. colu. j.; of whom the Church is known most greatly to stand in need for her own governance, as says the text in c. cum ex eo. de electio. — especially professors of the divine and human laws, by whose knowledge the world is illumined, and the life of subjects is formed unto obeying God and his Vicar and ministers, as says the text in auth. habita. C. ne filius pro Patre.

{Here ends Q. 9. On the same page (fol. 29v) follows the *SUMMARY* of the next quaestio (Q. 10; its items 1–3 on fol. 29v: *1 To whom it belongs to define whether an assertion is heretical or Catholic — to the theologian, or to the jurist. 2 The declaration of an assertion as heretical or Catholic seems to belong to the jurists. 3 Every professor is to be believed in his own profession.* — items 4 ff. continue on fol. 30r) — not transcribed.}